

CHAPTER 6.

An Act to make the provisions of the Public Health Act, 1875, with respect to the provision and regulation of Markets applicable in rural districts.

[1st August 1908.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :

Provision, &c.
of markets by
rural autho-
rities.

38 & 39 Vict.
c. 55.

1. A rural district council may, with the consent of the Local Government Board, exercise with respect to the provision or regulation of markets any powers which an urban district council may exercise with the consent of owners and ratepayers under section one hundred and sixty-six of the Public Health Act, 1875, and sections one hundred and sixty-seven and one hundred and sixty-eight of that Act shall apply with respect to the exercise of those powers by a rural district council as they apply with respect to the exercise of those powers by an urban district council.

Construction
and short
title.

2.—(1) This Act shall be construed as one with the Public Health Act, 1875.

(2) This Act may be cited as the Public Health Act, 1908, and this Act and the Public Health Acts may together be cited as the Public Health Acts.

CHAPTER 7.

An Act to amend the Law with respect to the Assessment of Damages under the Fatal Accidents Acts.

[1st August 1908.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :

Exclusion of
payments by
insurers in
assessment of
damages.
9 & 10 Vict.
c. 93.

1. In assessing damages in any action, whether commenced before or after the passing of this Act, under the Fatal Accidents Act, 1846, as amended by any subsequent enactment, there shall not be taken into account any sum paid or payable on the death of the deceased under any contract of assurance or insurance, whether made before or after the passing of this Act.

Short title.
27 & 28 Vict.
c. 95.

2. This Act may be cited as the Fatal Accidents (Damages) Act, 1908 ; and the Fatal Accidents Act, 1846, the Fatal Accidents Act, 1864, and this Act may be cited together as the Fatal Accidents Acts, 1846 to 1908.